

IN THE CHANCERY COURT OF HICKMAN COUNTY, TENNESSEE AT CENTERVILLE

IN THE MATTER OF:
ESTATE OF LOU ANNA LAWHORN,
Deceased

No. 902195P

MOTION TO HOLD EXECUTORS IN CONTEMPT AND TO REMOVE

Eddie Lawhorn, a residuary beneficiary of the Estate of Lou Anna Lawhorn, through counsel, moves the Court for an order holding the co-executors of the Estate of Lou Anna Lawhorn in contempt of court for failing to comply with the Court's order regarding filing an accounting and to remove [REDACTED] and Freddie Joe Lawhorn as the co-executors of the Estate of Lou Anna Lawhorn and further moves the Court for an order appointing Eddie Lawhorn the Successor Administrator C.T.A. of the estate.

In support of this Motion, the movant would show the Court that:

1. An Order was entered following an announcement of agreement on October 20, 1992 which Order required the executors, through their counsel, to file an accounting on or before November 30, 1992. Such accounting has not been filed.
2. The co-executors continue to be dilatory in carrying out their responsibilities and nothing seems to move them to properly perform.
3. The continued failure of the co-executors to comply with the Tennessee law merely increases the costs to the movant and delays final settlement of an estate which should have been closed long ago.

SUBMITTED: December 9, 1992.

[REDACTED]
By [REDACTED]
Attorney for Eddie Lawhorn
[REDACTED]
Chattanooga, TN 37402
[REDACTED]

CERTIFICATE OF SERVICE

I hereby certify that a true and exact copy of the foregoing document has been forwarded by U. S. Mail to the following persons and I further certify the parties named are advised said document will be heard at _____.m. on _____, 19____.

[REDACTED]
Dickson, TN 37055

On this 9th day of December, 1992.

File Ref: 4/A LA